FEASIBILITY OF CONVERTING AGRICULTURAL BUILDING TO HABITABLE USE IN GIGNAC

Analysis of Zone A Regulations

EXECUTIVE SUMMARY

Based on the Local Urban Plan (PLU) of Gignac, the conversion of an existing agricultural building in Zone A (Agricultural Zone) into habitable housing is highly unlikely unless directly linked to agricultural activity. This conclusion is supported by strict limitations on authorized uses, housing restrictions, and potential environmental constraints within Zone A.

FEASIBILITY ASSESSMENT: AGRICULTURAL BUILDING CONVERSION IN ZONE A

Based on the regulations for Zone A (Agricultural Zone) in the Local Urban Plan (PLU) of Gignac, the likelihood of converting an existing agricultural building into habitable use (housing) is extremely low to non-existent, unless the project is directly linked to an agricultural activity.

Here are the specific constraints defined in the regulations that support this conclusion:

REGULATORY CONSTRAINTS

1. Strict Limitation on Authorized Uses

- Principle: The zone is dedicated to protecting the agronomic, biological, or economic potential of agricultural lands. Only constructions and installations necessary for agricultural exploitation or public services are authorized.
- Prohibition: Any occupation or use of the land not explicitly listed in Article A 2 is strictly prohibited.

2. Restrictions on Housing

- Agricultural Necessity: New housing is only permitted if it is necessary for the agricultural exploitation and located in the immediate vicinity of the farm headquarters.
- Client's Situation: Since the client already has a house next door, justifying the "necessity" of a second dwelling for the same exploitation (unless for farm workers) would be very difficult administratively.
- Existing Buildings: The regulations allow for the maintenance and modification of the external appearance of existing dwellings (habitations existantes), provided these works do not create an extension outside the existing volume and do not constitute a change of destination. However, there is no provision in the provided text authorizing the change of destination of an agricultural building into a dwelling. Typically, if such conversions are allowed, the PLU must explicitly state it (often for buildings identified as having architectural interest), which is not the case in these excerpts.

3. Additional Environmental Constraints

Even if the use were theoretically argued (e.g., for farm tourism or housing strictly linked to the farm), other constraints in Zone A could block the project:

- A750 Motorway: There is a strict prohibition on all new construction within a 100-meter band from the axis of the A750 motorway, with very limited exceptions (public infrastructure or farm buildings, but generally not new housing).
- Risk Zones:

  Flooding: Parts of Zone A are covered by the PPRI (Risk Prevention Plan for Floods) or are located near "holes of old quarries" (purple hash on the zoning plan), which are unbuildable.
  Forest Fire: If the building is near a wooded area, strict brush clearing regulations apply (50 meters minimum).
- Flooding: Parts of Zone A are covered by the PPRI (Risk Prevention Plan for Floods) or are located near "holes of old quarries" (purple hash on the zoning plan), which are unbuildable.
- Forest Fire: If the building is near a wooded area, strict brush clearing regulations apply (50 meters minimum).

CONCLUSION AND RECOMMENDATION

Unless your client is a farmer who can demonstrate that this specific building is essential for housing farm staff or directly supports the farm's operation (and not just for personal convenience or rental income), the PLU regulations for Zone A do not permit the conversion of an agricultural building into a residential dwelling. The regulations focus on preserving the agricultural character and only allow maintenance of already existing homes.

> ! It is highly recommended to explore alternative options or seek clarification from the local authorities regarding the possibility of obtaining a special permit based on specific agricultural needs.